

**RECORD OF PROCEEDINGS FOR THE GOVERNING BODY
OF THE CITY OF CHEYENNE
Office of City Clerk**

May 23, 2022

The Governing Body of the City of Cheyenne met in regular session on this date beginning at 6:00 p.m. in Council Chambers and via electronic conference meeting. Present were: MAYOR – Patrick Collins, COUNCIL MEMBERS – Dr. Michelle Aldrich, Ken Esquibel, Richard Johnson, Pete Laybourn, Dr. Mark Rinne, Scott Roybal, Tom Segrave (via Zoom) and Jeff White. Absent: Bryan Cook. Also present: Kristina F. Jones, City Clerk. The pledge of allegiance was recited.

**EXPRESSION OF APPRECIATION TO THE 2021-2022 MAYOR’S YOUTH
COUNCIL AND STATE OF THE YOUTH ADDRESS.**

Consent Agenda. (All agenda items listed with the designation of [CA] are considered to be routine items by the governing body and will be enacted by one motion. There will be no separate discussion on these items unless a member of the governing body so requests and support by two other members is received. Any item removed from the Consent Agenda will be considered in its normal sequence on the agenda. Upon request by Mr. Laybourn and pursuant to support received by Mr. Roybal and Mr. Johnson, items #26, 36(a) and 36(c) were removed from the Consent Agenda. Upon request by Mr. White, and pursuant to support received by Mr. Esquibel and Mr. Roybal, agenda item #37(a) was removed from the Consent Agenda. Dr. Aldrich moved to approve remaining items, seconded by Mr. White. Motion carried. Voting “yes” – all members of the governing body present.

[CA] Minutes from Regular Meeting of the Governing Body on May 9, 2022. Motion (per Consent Agenda) carried.

Mayor Collins opened a public hearing for a bar & grill liquor license application filed with the City Clerk’s Office for Westby Edge LLC d/b/a Westby Edge LLC, 714 W. 20th St., Cheyenne, WY. Public comment was made by Misha Westby. There being no further comments or input and purpose of the hearing having been met, Mayor Collins closed the public hearing and referred the application to Finance Committee.

Mayor Collins opened a public hearing for a microbrewery license application filed with the City Clerk’s Office for Westby Edge LLC d/b/a Westby Edge LLC, 714 W. 20th St., Cheyenne, WY. There being no comments or input and purpose of the hearing having been met, Mayor Collins closed the public hearing and referred the application to Finance Committee.

Mayor Collins opened a public hearing to receive comments and input for the Hynds and the Hole Urban Renewal Plan and Project as required by Wyoming Statute pursuant to Wyoming Statute §15-9-109. Public comment was made by Alex Davison, Patton & Davison, LLC. There being no further comment or input, and purpose of the hearing having been met, Mayor Collins closed the public hearing.

Mayor Collins opened a public hearing to receive comments and input for the 15th Street Corridor Renewal Plan and Project as required by Wyoming Statute pursuant to Wyoming Statute §15-9-109. Comment was made by the following members of the governing body: Dr. Aldrich and Mr. Laybourn. There being no comments or input and purpose of the hearing having been met, Mayor Collins closed the public hearing.

ORDINANCE – 3rd READING – Amending Section 10.52.030, Parking Not to Obstruct Traffic, of Chapter 10.52, Stopping, Standing and Parking Generally, of Title 10, Vehicles and Traffic, of the Code of the City of Cheyenne, Wyoming. (Postponed from May 9, 2022). Reporting for Public Services Committee, Dr. Rinne moved to approve on third and final reading, seconded by Mr. Johnson. Dr. Rinne moved to amend by substitute dated May 3, 2022, seconded by Mr. Johnson. Comments were made by the following members of the governing body: Mayor Collins, Dr. Aldrich, Mr. Johnson, Mr. Laybourn, Dr. Rinne and Mr. Segrave. Motion to amend by substitute carried. Voting “yes” – all members of the governing body present. Main motion as amended by substitute carried. Voting “yes” – all members of the governing body present with the exception of Mr. Segrave voting “no”. (#4434)

ORDINANCE – 3rd READING – Amending Section 10.52.230 Downtown Construction/Maintenance Worker Parking in an Established Timed Parking Zone, of Chapter 10.52, Stopping, Standing and Parking Generally, of Title 10, Vehicles and Traffic, of the Code of the City of Cheyenne. Reporting for Finance Committee, Mr. White moved to approve on third and final reading, seconded by Mr. Esquibel. Motion carried. Voting “yes” – all members of the governing body present with the exception Mr. Segrave voting “no”. (#4435)

ORDINANCE – 2nd READING – Annexing to the City of Cheyenne, Wyoming, land located northwest of the intersection of Christensen Road and Pershing Boulevard. Dr. Rinne moved to approve on second reading, seconded by Mr. White. Motion carried. Voting “yes” – all members of the governing body present.

ORDINANCE – 2nd READING – Amending the Official Zoning Map of the City of Cheyenne changing the zoning classification from County A1 Agricultural and Rural Residential to MR Medium-Density Residential for land located northwest of the intersection of Christensen Road and Pershing Boulevard. Dr. Rinne moved to approve on second reading, seconded by Mr. Roybal. Motion carried. Voting “yes” – all members of the governing body present.

ORDINANCE – 2nd READING – Annexing to the City of Cheyenne, Wyoming, land located north of Missile Drive, east of I-25. Dr. Rinne moved to approve on second reading, seconded by Mr. Johnson. Comment was made by the following members of the governing body: Dr. Rinne. Motion carried. Voting “yes” – all members of the governing body present.

ORDINANCE – 2nd READING – Amending the Official Zoning Map of the City of Cheyenne changing the zoning classification from County LI Light Industrial to LI Light Industrial for land located north of Missile Drive, east of I-25. Dr. Rinne moved to approve on second reading, seconded by Mr. Johnson. Motion carried. Voting “yes” – all members of the governing body present.

ORDINANCE – 2nd READING – Annexing to the City of Cheyenne, Wyoming, land located north of High Plains Road, west of I-25. Dr. Rinne moved to approve on second reading, seconded by Mr. Johnson. Motion carried. Voting “yes” – all members of the governing body present.

ORDINANCE – 2nd READING – Amending the Official Zoning Map of the City of Cheyenne changing the zoning classification from Swan Ranch PUD Planned Unit Development to City Swan Ranch PUD Planned Unit Development (Ordinance No. 3989) for land located north of High Plains Road, west of I-25. Dr. Rinne moved to approve on second reading, seconded by Mr. Johnson. Motion carried. Voting “yes” – all members of the governing body present.

ORDINANCE – 2nd READING – Amending the Official Zoning Map of the City of Cheyenne changing the zoning classification from MUB Mixed-Use Business Emphasis to CB Community Business for land located northeast of the intersection of Dell Range Boulevard and Ridge Road. Dr. Rinne moved to approve on second reading, seconded by Mr. Johnson. Motion carried. Voting “yes” – all members of the governing body present.

ORDINANCE – 2nd READING – Amending the Official Zoning Map of the City of Cheyenne changing the zoning classification from CB Community Business to MR Medium-Density Residential for land located southeast of the intersection of Omaha Road and Pine Drive. Dr. Rinne moved to approve on second reading, seconded by Mr. Johnson. Motion carried. Voting “yes” – all members of the governing body present.

ORDINANCE – 2nd READING – Vacating a portion of the Goodnight Trail Roundabout, Sweetgrass, 1st Filing, City of Cheyenne, Laramie County, Wyoming (located along Goodnight Trail, between College Drive and Murray Road). Dr. Rinne moved to approve on second reading, seconded by Mr. Johnson. Comments were made by the following members of the governing body: Dr. Rinne. Motion carried. Voting “yes” – all members of the governing body present.

ORDINANCE – 2nd READING – Vacating a portion of the Sweetgrass Drive Roundabout, Sweetgrass, 1st Filing, City of Cheyenne, Laramie County, Wyoming (located along Sweetgrass Drive, Between College Drive and Murray Road). Dr. Rinne moved to approve on second reading, seconded by Mr. Johnson. Motion carried. Voting “yes” – all members of the governing body present.

ORDINANCE – 2nd READING – Creating Chapter 13.28, Urban Stormwater Quality Management and Discharge Control, Public Services, of the Code of the City of Cheyenne, Wyoming. Dr. Rinne moved to approve on second reading, seconded by Mr. White. Motion carried. Voting “yes” – all members of the governing body present.

ORDINANCE – 2nd READING – Approving and establishing revised water and sewer rates, tap and system development fees, administrative fees, service charges and penalties, and septic and commercial waste dump rates, as recommended by the Board of Public Utilities. Reporting for Finance Committee, Mr. White moved to approve on second reading, seconded by Mr. Esquibel. Comments were made by the following members of the governing body: Dr.

Aldrich, Mayor Collins, Mr. Johnson and Mr. Segrave. Motion carried. Voting “yes” – all members of the governing body present.

ORDINANCE – 2nd READING – Appropriating moneys for the City of Cheyenne, Wyoming for various purposes in conducting municipal government of said City and fixing the amount of general and special taxes as part of the revenue required to meet the said appropriation, all for the Fiscal Year beginning July 1, 2022 and ending June 30, 2023. Reporting for Committee of the Whole, Mr. Roybal moved to approve on second reading, seconded by Mr. White. Motion carried. Voting “yes” – all members of the governing body present. The following is a summary of the proposed budget: General Fund, \$59,636,705; Weed and Pest, \$655,082; Youth Alternatives Grants, \$937,492; Recreation Programs, \$1,718,330 Community Development Block Grant, \$491,403; Law Enforcement Grants, \$311,965; Transportation Planning, \$1,094,765; Transit, \$2,641,602; Juvenile Justice, \$91,953; Special Friends, \$47,132; Development Impact Fees, \$1,387,858; One Percent Sales Tax 2019-22, \$11,407,963; Specific Purpose Option Tax, \$504,995; Youth Activities/Ropes, \$18,209; Golf Facilities, \$318,700; Fleet Maintenance, \$6,113,510; Solid Waste Management, \$20,036,025; Civic Center, \$2,285,354; Ice & Events Center, \$839,431; Perpetual Care, \$3,000; Total City, \$110,541,474; Water Enterprise, \$36,303,073; Sewer Enterprise, \$17,374,778; Total Appropriation, \$164,219,325.

ORDINANCE – 1st READING – Amending the Official Zoning Map of the City of Cheyenne changing the zoning classification from MUB, MUR, LI, and CB to MUB with the UU Overlay for land located in the West Edge District – referred to Public Services Committee.

[CA] RESOLUTION – Authorizing the Mayor and the City Clerk to sign a final plat for Stanfield Apartments, a replat of Lots 1-4, & Lots 9-12, and that portion of the 16’ alley situate between Lots 1-4 & 9-12 Block 16, Roberts Place and that portion of vacated West 4th Street right-of-way, Interior Heights adjoining Lots 9-12, Block 16, Roberts Place, City of Cheyenne, Laramie County, Wyoming (located south of West 5th Street, west of Stanfield Avenue). Motion (per Consent Agenda) carried. (#6237)

[CA] RESOLUTION – Authorizing the Mayor and the City Clerk to sign a final plat for Harmony Valley, Second Filing, a replat of Lot 1, Block 8, Harmony Valley First Filing, City of Cheyenne, Laramie County, Wyoming. (located north of College Drive, between Elsie Jean Trail and York Avenue. Motion (per Consent Agenda) carried. (#6238)

RESOLUTION – To name a triangle shaped parcel of real property located at the intersection of Randall Avenue, West 32nd Street and Dey Avenue ‘Bill Dubois Memorial. Dr. Rinne moved to adopt, seconded by Mr. White. Comments were made by the following members of the governing body: Mr. Johnson, Mr. Laybourn and Mr. White. Motion carried. Voting “yes” – all members of the governing body present with the exception of Mr. Johnson voting “no”. (#6239)

[CA] RESOLUTION – Authorizing the Mayor and the City Clerk to sign a final plat for Saddle Ridge, 18th Filing a plat of a portion of the east half of Section 25, T.14N., R.66W., of the 6th P.M., City of Cheyenne, Laramie County, Wyoming (located northwest of the intersection of

Christensen Road and Pershing Boulevard) – referred to Public Services Committee. (Sponsor – Mr. Cook)

[CA] RESOLUTION – Providing for partial vacation of the Storey Boulevard Extension Final Plat – referred to Public Services Committee. (Sponsor – Mr. Cook)

[CA] RESOLUTION – Approving the budget of the Cheyenne Downtown Development Authority for the Fiscal Year beginning July 1, 2022 and ending June 30, 2023 – referred to Finance Committee. (Sponsor – Mr. White)

[CA] RESOLUTION – Approving the budget of the Cheyenne Regional Airport Board for the Fiscal Year beginning July 1, 2022 and ending June 30, 2023 – referred to Finance Committee. (Sponsor – Mr. White)

[CA] RESOLUTION – Authorizing the creation and appointment of a new Reed Avenue Corridor Steering Committee – referred to Public Services Committee. (Sponsors – Dr. Aldrich and Mr. Laybourn)

[CA] RESOLUTION – Approving the Hynds and the Hole Urban Renewal Plan and the Hynds and the Hole Urban Renewal Project pursuant to Wyoming Statute §15-9-110 – referred to Finance Committee. (Sponsor – Mr. Segrave)

[CA] RESOLUTION – Approving the 15th Street Corridor Urban Renewal Plan and the 15th Street Corridor Urban Renewal Project pursuant to Wyoming Statute §15-9-110 – referred to Finance Committee. (Sponsor – Mr. Segrave)

[CA] Professional Services Agreement between the City of Cheyenne and Benchmark Engineers, PC, for engineering design services for the Christensen Road Design modifications project (1% Specific Purpose Sales Tax). Motion (per Consent Agenda) carried (in an amount not to exceed \$73,525.00). (#7520)

[CA] Agreement between the city of Cheyenne and Laramie County for Animal Control Services (Revenue to the City). Motion (per Consent Agenda) carried (in an amount not to exceed \$109,000.00). (#7521)

[CA] Telecommunications Right-of-Way License and Use Agreement between Mountain West Technologies Corp and the City of Cheyenne (Revenue to the City). Motion (per Consent Agenda) carried. (#7522)

Contract between the City of Cheyenne and VSP Vision Care for group vision insurance benefits for city employees. Mr. Johnson announced he would be abstaining from discussion and voting due to an employment conflict. Mr. White moved to approve, seconded by Dr. Aldrich. Motion carried. Voting “yes” – all members of the governing body present with the exception of Mr. Johnson who did not vote. (#7523)

Development Agreement between the City of Cheyenne and PKT Development, LLC, for two (2) public capital improvement projects for the Dell Range Blvd. Roadway Project and for the Whitney Road Roadway and Dell Range Blvd. Intersection Improvement Project. Dr. Rinne advised the item was reviewed under other items for the agenda at the May 17, 2022 Public Services Committee meeting, therefore, provisions of Title 2 of City Code have been met. Dr. Rinne moved to approve, seconded by Mr. White. Dr. Rinne moved to amend by substitute dated May 23, 2022, seconded by Mr. Roybal. Comments were made by the following members of the governing body: Dr. Rinne. Motion to amend by substitute carried. Voting “yes” – all members of the governing body present. Main motion as amended by substitute carried. Voting “yes” – all members of the governing body present. (#7524)

[CA] Memorandum of Understanding between the City of Cheyenne and Laramie County School District #1 to provide transportation services for the summer Rec Camp Program (General Fund) – referred to Finance Committee.

[CA] Professional Services Agreement between the City of Cheyenne and Steiner Thuesen PLLC for the Cemetery Irrigation System Design Project (Specific Purpose Sales Tax) – referred to Finance Committee.

[CA] Professional Services Agreement between the City of Cheyenne and GLM Design Group for the Dry Creek Master Plan Update and Drainage Code Review Project (2019-2022 1% Sales Tax and Wyoming Office of Homeland Security/FEMA Grant) – referred to Finance Committee.

[CA] Memorandum of Understanding between the City of Cheyenne and the Wyoming Independent Citizen Coalition for public art projects – referred to Public Services Committee.

[CA] Professional Services Agreement between the City of Cheyenne and Waste Management of Colorado, Inc., for the Recycling Services Project (Solid Waste Fund) – referred to Finance Committee.

[CA] Contract Modification #1 to Contract #7427 between the City of Cheyenne and Russell+Mills Studios Inc., for the East Cheyenne Community Park Master Site Development Plan (Specific Purpose Sales Tax). Motion (per Consent Agenda) carried. (#7427)

Renewal of Contract #6837 between the City of Cheyenne and Delta Dental for group dental insurance benefits for city employees. Mr. Johnson announced he would be abstaining from discussion and voting due to an employment conflict. Mr. White moved to approve, seconded by Dr. Aldrich. Motion carried. Voting “yes” – all members of the governing body present with the exception of Mr. Johnson who did not vote. (#6837)

[CA] Contract Modification #1 to Contract #7475 between the City of Cheyenne and Front Range Roofing Systems, LLC, for the Ice and Events Center Roof Replacement Project (General Fund Reserves). Motion (per Consent Agenda) carried (in an amount not to exceed \$10,720.00). (#7475)

[CA] City Contract #150, Notice of Renewal of Lease Number 57-82HW-1-0171 from the United States Department of Agriculture, Agricultural Research Service, to lease the High Plains Grasslands Research Station (Revenue to City) – referred to Finance Committee.

[CA] Contract Modification #2 to Contract #7319 between the City of Cheyenne and KLJ Engineering for mapping and surveying services for the Landfill and Compost Facility for a two-year (2) extension (Solid Waste Fund) – referred to Finance Committee.

[CA] Contract Modification #1 to Contract #7500 between the City of Cheyenne and V & M Properties, LLC for property located at 1800 Westland Road, Cheyenne, Wyoming, for the purpose of relocating the Cheyenne Transit System office and transfer station (Federal Grant WY-2021-005-00 and Transit Fund) – referred to Finance Committee.

Consideration of Bid #E-25-22 for furnishing a professional audio reinforcement system for the City of Cheyenne, Community Recreation and Events Department (Civic Center Fund). Mr. White moved to accept bid from Brown Note Productions, Thornton, CO, in an amount not to exceed \$457,722.00, seconded by Dr. Aldrich. Comments were made by the following members of the governing body: Dr. Aldrich, Mr. Esquibel, Mr. Laybourn and Mr. Roybal. Motion carried. Voting “yes” - all members of the governing body present.

[CA] Consideration to purchase between the City of Cheyenne and Thomson Reuters, for a three (3) year software agreement to utilize the WestLaw Legal Research Platform for the City of Cheyenne Attorney’s office (General Fund). Motion (per Consent Agenda) carried (in an amount not to exceed \$83,216.64). (#7525)

Request to purchase a used brush truck style vehicle for the City of Cheyenne, Cheyenne Fire and Rescue Department (Specific Purpose Sales Tax). Mr. White moved to approve in an amount not to exceed \$150,000.00, seconded by Mr. Roybal. Comments were made by the following members of the governing body: Mayor Collins, Mr. Laybourn and Mr. Roybal. Motion carried. Voting “yes” – all members of the governing body present.

Bar and grill license application filed with the City Clerk’s Office for Billy Jacks – Wyoming LLC d/b/a Billy Jack’s Pizza Pub, 4020 Airport Parkway West Suite 1, Cheyenne, WY. Public comment was made by Jerry Cox, Director of Operations for Billy Jack’s Pizza Pub. Mr. White moved to approve, seconded by Mr. Roybal. Mr. White moved to postpone to June 13, 2022, seconded by Mr. Esquibel. Motion to postpone carried. Voting “yes” – all members of the governing body present.

[CA] Microbrewery license application filed with the City Clerk’s Office for Blue Raven Brewery, LLC, d/b/a Blue Raven Brewery, LLC, 209 E. 18th St., Cheyenne, WY. Motion (per Consent Agenda) carried.

Public comment was made by Jim Ridgeway on the Voucher Report as presented.

No comments were made on the Revenue Report as presented.

Appointment of Jason M. Sanchez as Community Recreation and Events Director for the City of Cheyenne effective July 6, 2022. Mr. Roybal moved to approve, seconded by Dr. Aldrich. Comments were made by the following members of the governing body: Dr. Aldrich and Mayor Collins. Motion carried. Voting “yes” – all members of the governing body present with the exception of Mr. Johnson voting “no” and Mayor Collins who did not vote (mayoral appointment).

Announcement was made of a Public Hearing to be held June 13, 2022 at 6:00 p.m. in City Council Chambers, 2101 O’Neil Avenue, Cheyenne, WY, and via electronic conference meeting, for a bar and grill liquor license application filed with the City Clerk’s Office for SAF Compliance LLC d/b/a Paris West Restaurant & Bar, 1719 Central Ave., Cheyenne, WY.

Announcement was made of a Public Hearing to be held June 13, 2022 at 6:00 p.m. in City Council Chambers, 2101 O’Neil Avenue, Cheyenne, WY, and via electronic conference meeting, for a proposed trade of real property owned by the City of Cheyenne, described as a portion of Missile Drive, Block 1, consisting of 2.35 acres and having an appraised value of \$547,658.00, to Retail Properties LLC, for real property owned by Retail Properties LLC, described as a portion of Grier Leech Addition, 4th Filing, Lot 4, Block 9, consisting of 2.89 acres and having an appraised value of \$548,083.00.

Announcement was made of a Public Hearing to be held June 13, 2022 at 6:00 p.m. in City Council Chambers, 2101 O’Neil Avenue, Cheyenne, WY, and via electronic conference meeting, for a proposed trade of real property owned by the City of Cheyenne, described as Storey Blvd. Extension: Lot 1, Block 6, consisting of 2.24 acres and having an appraised value of \$86,000.00, and 1720 Cleveland Ave., WYNN Addition: Lot 1, Block 1, consisting of 2.18 acres and having an appraised value of \$1,040,000.00, for real property owned by US 30 BP LLC, described as US 30 Business Plaza, 2nd Filing: Lot 1, Block 1, consisting of 2.86 acres and having an appraised value of \$1,350,000.00.

The Following members of the governing body made comments under other business – Mr. White, Mayor Collins and Mr. Esquibel.

There being no further business to come before the governing body, the meeting was officially adjourned at 7:47 p.m.

Submitted by,

Kristina F. Jones,
City Clerk

This notice is available in alternative, accessible formats upon request.

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